



THOMIC PROPERTY GROUP TRUST

DEED OF ESTABLISHMENT DISCRETIONARY TRUST

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TRUST DEED

PARTIES

SETTLOR	THE PARTY NAMED AS SETTLOR IN SCHEDULE 2
INITIAL TRUSTEE	THE PARTY NAMED AS INITIAL TRUSTEE IN SCHEDULE 2

OVERVIEW

- A On signing this document and paying the Settlement Sum to the Initial Trustee, the Settlor establishes the Trust.
- B The Initial Trustee and the Settlor agree:
- (i) the Settlor has paid the Settlement Sum to the Initial Trustee;
 - (ii) the Initial Trustee will act as trustee of the Trust; and
 - (iii) the Trust Fund will be held by the Initial Trustee on the terms in this document.

DEFINITIONS

In this document:

Term	Definition
Act	Means (as the context requires) either or both the <i>Income Tax Assessment Act 1936</i> (Cth) and the <i>Income Tax Assessment Act 1997</i> (Cth).
Asset Sub-Trust	Means any Property of the Trust over which a Principal has appointed a separate Trustee.
Bankruptcy Act	Means <i>Bankruptcy Act 1966</i> (Cth).
Beneficiaries	Means: (a) the Primary Beneficiaries; (b) the Secondary Beneficiaries; and (c) the Tertiary Beneficiaries.
Business Day	Means a day on which banks are open for general banking in the capital city of the State of the situs of the Trust.
Capital Gain	Has the same meaning as given to that term in the Act.
Capital of the Trust Fund	Means all money and Property forming the Trust Fund, including all money and Property accumulated under clause 2.2.
Children	Means biological and lawfully adopted children and 'Grandchildren' and 'Great-Grandchildren' have the corresponding meanings.

Term	Definition
	(ii) in all other cases, the person is the shareholder with the largest total shareholding in the disqualified person, or where there are two or more shareholders having the equal largest total shareholding in the disqualified person, those shareholders jointly.
Derivative Transaction	Means any contract or financial instrument that derives its value from an underlying asset, commodity, liability or index.
Determination Date	Means the last day of the Financial Year or any later date permitted: (a) under the Act; (b) by the relevant statutory authorities charged with enforcing the requirements set out under the Act; or (c) at law, by which the Trustee may make Beneficiaries presently entitled, within the meaning of the Act, to the Distributable Income for that Financial Year.
Distributable Income	Means, in respect of any Financial Year: (a) an amount equal to the Net Trust Income; or (b) any other amount that the Trustee determines on or before the Determination Date under clause 3.4.
Estate Property	Means Property that has been transferred: (a) by a person to the Trust Fund out of Property that passed to that person from the estate of a deceased person; or (b) directly to the Trust Fund under a will of a deceased person or otherwise as a consequence of a person dying.
Excepted Trust Income	Has the same meaning as in the Act.
Excluded Persons	Has the meaning set out in Schedule 2.
Event of Disqualification	Means: (a) death; (b) the loss of lawful capacity through age, accident, or illness (evidence of which is by certificate of a registered medical practitioner); (c) committing an 'act of bankruptcy' within the meaning of section 40 of the Bankruptcy Act (excluding section 40(b) of the Bankruptcy Act);

Term	Definition
	credit or any other separately identifiable taxation consequence or benefit attaches or arises; (b) a Capital Gain or a Net Capital Gain, or income derived from a Capital Gain or a Net Capital Gain or from any class of Capital Gain or Net Capital Gain; (c) income such as interest, royalties or exempt income: (i) of any class; or (ii) derived from such income types; (d) income being income of any other class, source or description referred to in the Act or any other legislation; and (e) income which under the Act has or gives rise to any other separately identifiable taxation consequence or benefit.
LPR	Has the same meaning as the term 'legal personal representative' in the Act.
Master Agreement	Means any document that: (a) sets out the terms of, or otherwise relates to, any Derivative Transaction; and (b) is published or prepared by a financial institution of any kind.
Maximum Period	Means the maximum period that a trust may be in existence without contravening the rule against perpetuities in the jurisdiction of the situs of the Trust.
Minor	Means a person who has not attained the age of 18 years or who does not have legal capacity.
Minute of the Trustee or Principal	Means: (a) a written minute signed by the Trustee or Principal; or (b) where the Trustee or Principal is a company, a decision of directors passed in accordance with the company's constitution.
Net Capital Gain	Means an amount assessable as a net capital gain, as that term is defined in the Act.
Net Trust Income	Means the amount calculated as the net income of the Trust under section 95 of the Act (1936), excluding any amount that would otherwise be included pursuant to section 207-20(1) of the Act (1997).

Term	Definition
Trust Fund	Means: (a) the Settlement Sum initially paid to the Trustee; (b) any other money or any Property the Settlor or another person gifts, transfers, assigns or vests to the Trustee or otherwise acquired by the Trustee to be held on the terms of this document; (c) the investments into which any money or Property may be converted under this document; (d) any Capital Gain accumulated by the Trustee under this document; and (e) any Distributable Income accumulated under clause 2.2.
Vesting Day	Means: (a) the day upon which the Maximum Period, starting on the date of this document, expires; (b) whatever day earlier than the date in (a) that the Trustee may in its absolute discretion appoint by Resolution to be the vesting day; or (c) if the jurisdiction of the situs of the Trust does not prescribe a Maximum Period then whatever day the Trustee may in its absolute discretion appoint by Resolution to be the vesting day.

AGREED TERMS

1 CREATION OF TRUST

- 1.1 The Settlor declares, and the Initial Trustee confirms, the Trustee holds the Trust Fund for the benefit of the Beneficiaries until the Vesting Day, in accordance with the terms of this document.

2 DISTRIBUTION OF INCOME

- 2.1 In each Financial Year the Trustee, subject to any earlier decision under clause 2.2, holds the Distributable Income on trust absolutely for the Beneficiaries (or any one or more of them to the exclusion of the other Beneficiaries) in the proportions that the Trustee, with an absolute discretion, decides on or before the Determination Date.
- 2.2 In each Financial Year the Trustee may, on or before the Determination Date, decide to accumulate any part or parts of the Distributable Income and such accumulation forms part of the Capital of the Trust Fund.
- 2.3 At any later time, the Trustee may determine that any amount accumulated under clause 2.2 may be treated as Distributable Income.

- 3.2 The amount identified in the determination in clause 3.1 is treated for all purposes as being held absolutely for a Beneficiary or accumulated, as applicable, from the income or capital or part or class identified.
- 3.3 Without limiting clause 3, the Trustee, when making any determination about Distributable Income or Capital of the Trust Fund, may identify that the whole or any part of any one or more of the Income Classes is to be accumulated under clause 2.2 or held absolutely:
- (a) for the benefit of any one or more of the Beneficiaries;
 - (b) in any proportions as between those Beneficiaries; and
 - (c) otherwise in the manner,
- that the Trustee determines.
- 3.4 The Trustee may determine that the Distributable Income in any particular Financial Year is any amount whatsoever, including by determining:
- (a) that specific amounts are to be included or excluded from Distributable Income, including to determine that an amount is to be included in Distributable Income even where it would otherwise be capital under trust law or accounting principles;
 - (b) that amounts included as Distributable Income are taken to be derived as income when received or deemed to be received;
 - (c) that an amount the Trustee anticipates receiving at a later time relating to a transaction or disposal in the particular Financial Year is included in Distributable Income; and
 - (d) whether any amounts of expenses or outgoings are to be included as being, or excluded from being, incurred in connection with deriving income.
- 3.5 The Trustee may make a determination about the whole or any part of the Distributable Income by reference to its character or class in the hands of the Trustee, even if the Trustee incurred expenses in connection with the derivation of it.
- 3.6 The Trustee may determine:
- (a) whether any amount is capital or income, including to determine that an amount is income even where it would otherwise be capital under trust law or accounting principles and to determine that an amount is capital where it would otherwise be income under trust law or accounting principles;
 - (b) out of what part of the Trust Fund any expenses or outgoings are to be paid;
 - (c) how values are to be determined; and
 - (d) all matters as to which any doubt, difficulty or question may arise under this document.
- 3.7 The Trustee, in exercising its powers under clauses 2 and 3, may:
- (a) separately account or adopt accounting procedures or records for each class, category or source of the Distributable Income;
 - (b) allocate costs or deductions as between those sources; and
 - (c) make a decision about those components with reference to their sources.

then those people take the Default Income or Default Capital as tenants in common in equal shares.

6 TRUSTEE DECISIONS

6.1 Unless expressly provided otherwise in this document:

- (a) every discretion whether to make (or not to make) a decision, determination, appointment or nomination vested in the Trustee is absolute and unfettered; and
- (b) every power vested in the Trustee is exercisable in the Trustee's absolute and unfettered discretion.

6.2 Any decision of the Trustee under clauses 2, 3 or 4 must be recorded by a Resolution of the Trustee.

7 POWERS ABOUT DISTRIBUTIONS

7.1 Where the Trustee has decided to hold any amount absolutely for a Beneficiary, the Trustee may do any one or more of the following:

- (a) place that amount to the credit of the Beneficiary in the books of the Trust Fund, other than as a loan by the Beneficiary, so that it will be held on a separate trust for the Beneficiary, although still part of the Trust Fund;
- (b) with the prior written consent of the Beneficiary, place that amount to the credit of the Beneficiary in the books of the Trust Fund as an at call loan by the Beneficiary;
- (c) apply the amount towards satisfying money owing by the Beneficiary to the Trustee, or owing to a third person by the Beneficiary;
- (d) pay the amount by cheque or electronic funds transfer made payable to or for the credit or benefit of the Beneficiary;
- (e) pay that amount in cash to or for the benefit (via a third person) of the Beneficiary; or
- (f) make an in specie transfer of Property of the Trust Fund in satisfaction of that amount.

7.2 The Trustee may join the Trust Fund with any other trust fund (whether created by the Settlor or any other person) to cause two or more trust funds to become one trust fund.

Intermingling

7.3 The Trustee may intermingle amounts that are held absolutely for any Beneficiary (pursuant to a decision by the Trustee) with the Trust Fund.

7.4 If there is intermingling of amounts, the Trustee is authorised to deal with the income or gains so arising as:

- (a) a part of the Trust Fund; or
- (b) being held for the Beneficiary.

7.5 The Trustee is taken to be acting in the best interests of the Beneficiaries when making any determination under this clause.

10 BENEFICIARIES

- 10.1 The Trustee may from time to time pay or apply the whole or any part of the Distributable Income or Capital of the Trust Fund towards the maintenance, education, advancement or other general benefit of any Beneficiary absolutely.
- 10.2 The Trustee may make any payment for the benefit of a Minor Beneficiary under this document to (or as directed by) the guardian (including themselves) or other person having the care or custody of that Minor, without being responsible as to its application and is not liable to recover any moneys so applied if the recipient fails to attain a vested interest.
- 10.3 No Beneficiary is required to personally indemnify the Trustee or a creditor of the Trust or any sub-trust in relation to any liability, loss, damage or expense either incurred or suffered in connection with the Trust.
- 10.4 The Trustee may at any time by Resolution determine that any person or class of persons is excluded as a Beneficiary of the Trust, with effect from the date specified permanently, for a fixed period or until the determination is revoked by the Trustee.
- 10.5 Any Beneficiary may by notice to the Trustee at any time exclude themselves as a Beneficiary of the Trust and no further amounts (whether income or capital) will be applied to them, however any such notice will not affect the beneficial entitlement to any amount set aside for the Beneficiary or amount held in trust for the Beneficiary prior to the date of the notice.

11 CONFLICTS OF INTEREST

- 11.1 The Trustee may:
 - (a) contract with, or sell or grant options to buy any part of the Trust Fund to;
 - (b) purchase Property from;
 - (c) borrow money from; or
 - (d) enter into any share farming or agistment agreement, lease, tenancy or partnership with,
the Trustee in its own or any other capacity, either alone or in conjunction with any other persons or:
 - (e) any company or partnership, even if the Trustee, or any shareholder or director of the Trustee, is a shareholder, director, member or partner of that company or partnership; or
 - (f) a Spouse or Child of the Trustee.
- 11.2 The Trustee may exercise (or concur in exercising) all of the powers and discretions contained in this document or otherwise conferred by law, even if:
 - (a) the Trustee, or any director or shareholder of a Trustee that is a company:
 - (i) has or may have any direct or personal interest in the mode or result of exercising that power or discretion; or
 - (ii) may benefit either directly or indirectly as a result of the exercise of that power or discretion;

- 13.2 The Trustee (and any delegate of a Trustee) must act jointly (if at any time there is more than one), other than in exercising the powers given under clause 20.
- 13.3 A Trustee may:
- (a) delegate the exercise of all or any powers or discretionary authorities conferred on the Trustee; and
 - (b) sign any power of attorney, appointment of agent, nomination of nominee or bare trustee or other document necessary to give effect to a delegation.
- 13.4 Where anything is to be done by deed, it may be done by stating that the power contained in this clause is being exercised.
- 13.5 Any delegation under this clause:
- (a) must be made in writing;
 - (b) may be made solely by one Trustee (regardless of whether there is more than one Trustee), or jointly by some or all of the Trustees, and is an effective delegation for each Trustee making the delegation; and
 - (c) is effective regardless of whether any Trustee making the delegation is out of the State of situs of the Trust at any time.
- 13.6 Any Trustee who is a natural person may appoint any person to be an alternative Trustee in their place, with the appointment effective whenever the Trustee is absent from the place where the Trust Fund is being administered.
- 13.7 No mortgage, charge or other security given or created by the Trustee in respect of the Trust Fund or any part of it is invalid by reason of:
- (a) any error or omission (whether of law or fact) on the part of the Trustee; or
 - (b) by reason of any breach of duty or trust whatsoever,
- unless it can be proved to have been committed, made or omitted in deliberate bad faith by the Trustee. All persons claiming any beneficial interest in, over or to the Trust Fund are deemed to have had notice of the provisions of this clause.
- 13.8 No person dealing with the Trustee is required to enquire as to:
- (a) the adequacy of the powers of the Trustee in relation to that dealing;
 - (b) the proper exercise by the Trustee of any of the powers, authorities and discretions vested in the Trustee by the provisions of this document; or
 - (c) the propriety or regularity of any transaction affecting the Trust Fund.
- 13.9 In the absence of fraud on the part of any person dealing with the Trustee, that dealing will be deemed (so far as the security and protection of that person is concerned) to be within the powers of the Trustee and to be valid and effectual and the receipt of the Trustee discharges them from all liability.

14 RELEASE AND INDEMNITY

- 14.1 A Trustee is not liable:
- (a) for the consequences of any act, omission, error or forgetfulness whether of law or fact on the part of the Trustee or their legal or other advisers; or
 - (b) generally for any breach of duty or trust,

or as otherwise required by law, and the Beneficiary requesting the disclosure must pay the Trustee's reasonable costs of responding to any request (including any costs of seeking advice).

16 EXCLUSION

16.1 Regardless of any other provision of this document or at law:

- (a) the Trust Fund is to be held and enjoyed to the absolute exclusion of the Excluded Persons; and
- (b) no part of the Trust Fund may be:
 - (i) paid or lent to; or
 - (ii) applied for the benefit, either directly or indirectly, of, the Excluded Persons, in any manner or in any circumstance.

17 VARIATIONS

17.1 Subject to this clause, the Trustee in its absolute discretion may by Resolution at any time before the Vesting Day, with the written consent of the Principal alter, amend, vary or absolutely revoke or resettlement all or any of the trusts, powers and provisions set out in this document, including any schedules.

17.2 Any attempted exercise of the power under this clause 17 is ineffective to the extent that it would otherwise result in:

- (a) a share of, benefit from or interest in or under the Trust Fund being acquired by or passing to the Excluded Persons;
- (b) a breach of clauses 2.10 or 16 of this document; or
- (c) a change in the beneficial interest of any Beneficiary in respect of any amounts they have become absolutely entitled in accordance with clause 5.

17.3 The Trustee may at any time renounce or release the power of alteration, variation, revocation or resettlement in this clause, either in respect of the whole or any part of the Trust Fund.

17.4 Following any renunciation or release under this clause, that power of alteration, variation, revocation and resettlement is deemed to be at an end and is no longer exercisable by the Trustee to the extent of the renunciation or release.

18 POWERS OF PRINCIPAL

18.1 The Principal may at any time by Resolution:

- (a) appoint any other person (including a company) to be a trustee of the Trust with, or in replacement of, the present Trustee; and
- (b) retire the Trustee of the Trust.

18.2 Without limiting the provisions of this clause, the Principal may:

- (a) appoint a separate trustee in respect of separate assets of the Trust Fund, including any Asset Sub-Trust;
- (b) remove a trustee appointed and appoint another trustee in their place; and

Subtrusts

- 19.9 In relation to any Asset Sub-Trust, the provisions of this clause apply separately in relation to each such appointment, such that:
- (a) a Principal may appoint and remove trustees of an Asset Sub-Trust without altering the appointment for the remainder of the Trust Fund;
 - (b) a Principal may appoint their successor for the purposes of this clause in respect of an Asset Sub-Trust, without impacting any other parts of the Trust Fund; and
 - (c) a Principal may appoint different successors for each Asset Sub-Trust.

20 RETIREMENT OF TRUSTEE

- 20.1 A Trustee who wishes to retire:
- (a) may do so by Resolution; and
 - (b) must give notice of the retirement to the Principal and to any remaining Trustees.
- 20.2 The retirement of a Trustee is effective as at and from the date of the notice, unless otherwise set out in the notice.

21 OFFICE OF THE TRUSTEE

- 21.1 The powers of the Trustee cease on an Event of Disqualification happening to the Trustee.
- 21.2 Subject to this document and the legislation regulating trusts in the jurisdiction where the situs of the Trust Fund is, if all of the Trustees have ceased to act before the Vesting Day, then the new Trustee is the Default Successor.
- 21.3 Apart from the circumstances set out in this document, the powers of the Trustee are personal to the persons nominated and cannot be exercised by any other person, entity or court.
- 21.4 On retirement or removal of a Trustee, the Trustee must:
- (a) hand over the books, accounts, documents and Property of the Trust to the new trustee;
 - (b) do everything necessary to vest the assets of the Trust in the new trustee;
 - (c) do everything reasonably required by the new trustee to hand over to the new trustee possession and control of any assets registered with third parties; and
 - (d) do all other things reasonably required by the new trustee to inform the new trustee of the arrangements of the Trust.

22 GOVERNING JURISDICTION

- 22.1 This document is governed by and is to be construed in accordance with the laws of Victoria.

- (o) if any part of this document is illegal or unenforceable in any jurisdiction, it can be severed in the relevant jurisdiction, with the remaining clauses (or parts of the clause) remaining in force;
- (p) unless this document provides for a notice or communication to be given orally, any notice or other communication must be in writing and signed by the person giving the notice and be addressed to the address of the person to whom it is to be given;
- (q) a reference to 'month' means a calendar month;
- (r) if any provision of this document is ambiguous, it is to be interpreted broadly to widen and not restrict the provisions;
- (s) where an expression is defined anywhere in this document, it has the same meaning throughout; and
- (t) a reference to 'dollars' or '\$' is to an amount in Australian currency.

Notices

23.2 A notice or other communication is deemed to be received:

- (a) in the case of a posted letter, on the second Business Day after posting where sent by Australia Post's 'express post' service and if not, then on the seventh Business Day after posting;
- (b) in the case of delivery by generally recognised overnight courier, on the next Business Day after dispatch with that courier;
- (c) in the case of personal delivery, on the date of delivery;
- (d) in the case of facsimile transmission, at the time recorded on the transmission report from the machine from which the facsimile was sent; and
- (e) in the case of transmission by email, on the day of transmission if there is confirmation that the transmission was completed before 5.00pm on a Business Day, and alternatively, on the next Business Day. Email service is effective only if there is confirmation that it was sent in full and without error and the message is not rejected or undeliverable as evidenced by a message to that effect received by the sender.

Counterparts

23.3 This document may be signed in any number of counterparts and all counterparts together make one document.

Power to lend

- (7) lend moneys forming part of the Trust Fund, or give credit to any person or company (including any company any Beneficiary may own shares in or is a director of) on such terms as the Trustee may decide:
 - (a) at call or for a period of time;
 - (b) at a rate of interest or at no interest; and
 - (c) with the taking of security in any form or without security;

Power to borrow and to provide security

- (8) raise or borrow moneys either alone or jointly with another or others, from any person including a firm or company, either bearing or free of interest and on terms and for purposes as the Trustee may decide;
- (9) secure the repayment of any moneys or other indebtedness by mortgage, charge or other security or encumbrance over the whole or part of the Trust Fund as the Trustee may decide;

Property

- (10) hold, use or buy;
- (11) construct, demolish, maintain, repair, renovate, reconstruct, erect, develop or improve;
- (12) sell, transfer or convey (including by auction, contract, tender or option);
- (13) manage, hire, surrender, let, licence or lease on any terms all or any part of the Property (including, for example, for a period of more than 21 years);
- (14) receive livestock on agistment;
- (15) buy stock, plant, equipment and fittings;
- (16) make allowances to and arrangements with tenants, including where a tenant is a Beneficiary;
- (17) take on lease or exchange;
- (18) take or grant options or rights in, including easements or any other right;
- (19) exchange for other Property, either with or without consideration;
- (20) alienate, mortgage, charge or pledge;
- (21) allow any Beneficiary to occupy, utilise or have custody on whatever terms the Trustee determines, including free of any charge or only requiring reimbursement of expenses;
- (22) reconvey, release or discharge, or otherwise deal with any Property;
- (23) apply for, buy or otherwise acquire any patents, patent rights, copyrights, designs, trademarks, formulas, licences, concessions and anything else conferring exclusive, non-exclusive or limited rights to use any secret or other information about any invention:
 - (a) which may be capable of being used for any of the purposes of the Trust Fund; or

Guarantees and indemnities

- (33) guarantee, indemnify, secure by way of mortgage, charge or otherwise over the whole or part of the Trust Fund or undertake in any way the payment or repayment of money or debts (including any interest whether existing or to accrue) previously or then lent or to be advanced or any existing or future duties, undertakings, liabilities or obligations incurred or which may at any future time be incurred by any person whether a Beneficiary or not and to guarantee, indemnify or secure, with or without security, the due performance of any contract, agreement, covenant or obligation of any person whether a Beneficiary or not, either with or without security and either alone, jointly, severally or jointly and severally;

Agree and settle accounts

- (34) agree and settle accounts with all persons (including the Trustee) liable to account with the Trustee about the Trust Fund;
- (35) sign effectual receipts, releases and discharges;

Insurance

- (36) buy or acquire (with or without any options, rights, benefits, conditions or provisions):
- (a) any reversionary, deferred proprietary or other rights; or
 - (b) any life, life endowment, sinking fund, term or other policy of insurance or assurance of any nature;
- (37) pay any amount payable, for premiums or otherwise:
- (a) to effect or maintain any policy of insurance or assurance (whether or not owned by the Trustee); or
 - (b) for the exercise or enjoyment of any option, right or benefit under any policy,
- and the surrender of any policy for all purposes may be deemed by the Trustee to be a sale of the policy;
- (38) if it is necessary to make any claim under a policy, do all things and sign all documents for the perfection or enforcement of any rights arising from or in connection with any policy;

To mix funds

- (39) mix the Trust Fund including its income and any other moneys held from time to time by the Trustee pursuant to these trusts with other moneys held by the Trustee pursuant to any provision of this document or under any other trust and:
- (a) to invest the moneys so mixed in any investment, Property, interest, arrangement or business or in any other mode or manner in which the Trustee may by law or by this document be empowered to invest the Trust Fund;
 - (b) to exercise all powers, authorities and discretions with respect to the mixed fund which the Trustee is by this document or by law authorised to exercise with respect to the Trust Fund; and

- (b) the employees or ex-employees of any company, partnership, association or syndicate in which the Trust Fund may have invested;
- (52) grant pensions and allowances;

Power to appropriate trust fund in specie

- (53) appropriate in specie any portion of the Trust Fund, or any investment to or towards the share or entitlement of a beneficiary and to charge the share or entitlement with a sum of money by way of equality as the Trustee may think fit and for these purposes the Trustee may fix the value of any Property forming part of the Trust Fund and the appropriation, charge and valuation will be binding on all persons who may at any time be entitled to any interest in the Trust Fund;

Pay expenses

- (54) pay out of the Capital of the Trust Fund or the Distributable Income all costs, charges and expenses incidental to the:
 - (a) management of the Trust Fund;
 - (b) exercise of any power, authority or discretion; or
 - (c) carrying out or performing the role of Trustee of the Trust,which the Trustee incurs in any part of the world, including without limitation all:
 - (d) taxes in respect of the Trust Fund;
 - (e) liabilities incurred in carrying on any business or owning any Property;
 - (f) costs in any way connected with the Trust Fund; and
 - (g) amounts by way of penalty, settlement, probate, estate gift, stamp or revenue duty;

Employ

- (55) employ any person (including any Beneficiary or the Trustee) in connection with any activities of the Trustee or in connection with anything required to be done under this document;
- (56) determine the remuneration to be allowed and paid in respect of any employee;
- (57) create or arrange any scheme of superannuation or similar arrangements for the benefit of any employee;
- (58) act personally and charge and be paid from the Trust Fund a reasonable remuneration;
- (59) instead of acting personally, employ at the expense of the Trust Fund any agents, managers, advisers and accountants (including any Beneficiary);

Nominee

- (71) allow any asset of the Trust Fund to be held or registered in the name of any nominee or agent;
- (72) deposit securities over or titles in the Property of the Trust Fund with any bank or other lender or guarantor;

Directorships

- (73) become a director of any company in which any moneys forming part of the Trust Fund are from time to time invested and receive the remuneration attached to the office without being liable to account;

Gift or advance

- (74) make out of the Trust Fund to any person any gifts or advances for any reason, even if not for religious, charitable or benevolent purposes or objects;

Power to advance

- (75) to advance amounts (including Capital of the Trust Fund) to Beneficiaries for any reason;

Accept gifts

- (76) accept, from any person, including via will, from the settlor or from the trustee of another trust (and from the Trustee itself acting in its personal capacity or in its capacity as the trustee of any other trust) any gift, transfer or disposition of any Property to be part of the Trust Fund.

	(a) the trustee of any trust or settlement in existence on or before the Vesting Day in which: (i) any of the Primary Beneficiaries or Secondary Beneficiaries is named as a beneficiary or is a member of a class of beneficiaries named in that trust; and (ii) none of the capital or income is or may be held for the Settlor; (b) any company in existence on or before the Vesting Day in which: (i) any individual Primary Beneficiary or Secondary Beneficiary is a director of; (ii) any one or more of the Primary Beneficiaries or Secondary Beneficiaries is a beneficial owner of shares of any type; or (iii) shares of any type are owned by or on behalf of the trustee of any trust referred to in paragraph (a) of this definition; or (iv) the Trustee owns shares of any type; (c) any religious, charitable, educational (primary, secondary or tertiary) or benevolent institution that by Resolution the Trustee appoints; (d) any person (including the trustee of any other trust or settlement or superannuation fund in which the Settlor has no right to capital or income) that by Resolution the Trustee appoints; (e) the trustee of any unit trust which has as a unitholder the trustee of any trust referred to in paragraph (a) of this definition; and (f) the LPR of any of the Primary Beneficiaries or Secondary Beneficiaries.
EXCLUDED PERSONS	Means the Settlor, the Settlor's Spouse and the Settlor's Children.
APPLICABLE LAW	The laws of Victoria.